

The Maharashtra Land Revenue (Inspection, Search and Supply of Copies of Land Records) Rules, 1970

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The Maharashtra Land Revenue (Inspection, Search and Supply of Copies of Land Records) Rules, 1970

MAHARASHTRA

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The Maharashtra Land Revenue (Inspection, Search and Supply of Copies of Land Records) Rules, 1970

Rule

THE-MAHARASHTRA-LAND-REVENUE-INSPECTION-SEARCH-AND-SUPPLY-OF-COPIES-OF-LAND-RECORDS-RULES-1970 of 1970

Published on 6 July 1970

Commenced on 6 July 1970

[This is the version of this document from 6 July 1970.]

[Note: The original publication document is not available and this content could not be verified.]

The Maharashtra Land Revenue (Inspection, Search and Supply of Copies of Land Records) Rules, 1970

Published vide Notification No. R. & F.D. No. UNF. 2867-R (6-7-1970)

R. & F.D. No. UNF. 2867-R(6-7-1970). - In exercise of the powers conferred by sub-section (1) and clauses (xxvii), (lxi) and (lxii) of sub-section(2) Section 328, read with Sections 75, 339 and 327 of the Maharashtra Land Revenue Code, 1966 (Maharashtra XLI of 1966), and all other powers enabling in it that supersession of all previous rules made in this behalf and continued in force by virtue of the third proviso to Section 336 of the said Code, the Government of Maharashtra hereby makes the following rules, the same having been previously published as required by sub-section

(1) of Section 329 of the said Code, namely :-

1.

Short title.

- These rules may be called the Maharashtra Land Revenue (Inspection, Search and Supply of Copies of Land Records) Rules, 1970.

2.

Inspection of records.

- All documents, plans, maps, registers, accounts and records including land records, (hereinafter referred to as "records") the right of inspection of which is provided for in Sections 239 and 327 of the Code, shall with the permission of the officer-in-charge of the same, be open to inspection in his office during the usual office hours every day, except Sunday and public holidays; on payment of fees hereinafter prescribed.

3.

Application for inspection.

(1)

Any person desiring to inspect any records shall, himself or through his recognised agent, make an application for such inspection to the officer-in-charge of such records stating therein the particulars about the records, and the purpose for which the inspection is sought.

(2)

On receipt of an application under sub-rule (1), the officer-in-charge of the records shall grant the permission, unless the application is rejected under sub-rule(3).

(3)

If the officer-in-charge of the records (not being a Talathi) considers that the records of which inspection is sought, are of a confidential nature or that the inspection would be prejudicial to public interest, he may record an order rejecting the application for inspection. And where a Talathi is in charge of such records, he shall refer the application for the orders of the Tahsildar.

4.

Fees for inspection.

- The fees for inspection of records shall be pre-paid in cash in accordance with the rate as provided in the Schedule hereto.

Schedule

Serial No.

Category of records

Fees

1.

Records pertaining to the City of Bombay.

Rs.[22.50]

[No. PWR-1082, CR-II-67-L-2, 7.5.1985, M.G.G., Part IV-B, p. 1618.]

for every day or part thereof.

2.

Records pertaining to an area other than the City of Bombay

(a) In charge of an officer of and above the rank of a

Naib-Tahsildar.

Rs.[3]

[No. PWR-1082, CR-II-67-L-2, 7.5.1985, M.G.G., Part IV-B, p. 1618.]

for every hour or a portion thereof

(b) In charge of an officer below the rank of a

Naib-Tahsildar.

Rs.[1.50]

[No. PWR-1082, CR-II-67-L-2, 7.5.1985, M.G.G., Part IV-B, p. 1618.]

for every hour or a portion thereof.

Provided that, no fees for inspection shall be charged to Government officers or other persons duly authorised in this

behalf for Government purposes; or to an officer of the Court of Wards for the purposes of that Court, or to officers of any local authority for the purposes of such authority or to officers of co-operative societies for the business of the society.

5.

Inspection to be made under directions of Officer.

- The inspection shall be made at such time, in such place and in the presence of such official as the officer-in-charge of the records, may direct.

6.

Inspection how to be made.

(1)

No person who is permitted to inspect the records inspected or extract any papers therefrom. He shall return the record so inspected in their original condition when the inspection is over. He may, during the inspection, himself or through his recognised agent, make in pencil a copy of the records or any portion thereof, inspection of which is permitted; but a copy so made shall be certified by any officer.

(2)

Any person infringing this rule shall be deprived of the right of inspection for such period as the officer-in-charge of the records may direct, and in addition, be punishable with such fine not exceeding two hundred rupees as the Collector may, after giving such person an opportunity to be heard, deem fit to impose.

7.

Fees for search when to be charged.

- When an application is made for inspection or copy of any records and such application does not distinctly describe the number, date and nature of the record required, or if the description given in such application is incorrect, and it shall, in consequence, be necessary for the officer-in-charge of the record to search his records in order to find the required records, a fee at the rate provided in the Schedule hereto shall be payable in cash by the applicant in advance for such search whether the inspection or copy for which he applies, on examination of the said record by the said officer, be granted or not.

Schedule 2

Serial No.

Category of records

Fees

1.

Records pertaining to the City of Bombay.

Rs. *[22.50] for every day or part thereof.

2.

Records pertaining to an area other than the City of Bombay

(a) record of alienated lands maintained under Section 75 of the Code

Rs. *[7.50] for every bundle (rural) searched

(b) any other records

Rs. *[3] for every year of which records are searched.

8.

Supply of certified copies.

- Certified extracts from or copies of records may be obtained with the permission of the officer-in-charge of the records, on payment of fees and additional fees for scaled off perimeter measurements, hereinafter prescribed:

Provided that, no copy shall be granted of any record which has been printed or lithographed and published under the authority of the State Government and is on sale.

Explanation. - For the purposes of this rule, printed or lithographed matter not covered by the proviso shall be treated as matter copied.

9.

Application of copies.

(1)

Any person desiring to have a copy of any record shall, himself or through his recognised agent, make an application to the officer-in-charge of the record stating therein the particulars of the records and the purpose for which copy thereof is required.

(2)

On receipt of an application under sub-rule (1), the officer-in-charge of the record may grant the request, unless it is rejected under sub-rule (3).

(3)

If the officer-in-charge of the record (not being a Talathi) considers that the record of which a copy is applied for, is of a confidential nature, or that the supply of the copy would be prejudicial to the public interest, he may record an order rejecting the application. Where a Talathi is in-charge of such record, he shall refer the application for the orders of the Tahsildar.

10.

Supply of true copies of certified copies.

- Subject to the provisions of Rules 8 and 9 every officer-in-charge of a certified copy of any records shall on an application made to him by any person prepare and give to him a true copy of such certified copy of the record under his own signature on payment of the fees hereinafter prescribed. On every such copy it shall be clearly stated by such officer that it is a true copy of the certified copy of the record.

11.

Receipt to be endorsed on copy.

- On every certified copy or extract or true copy of certified copies or extracts granted under these rules there shall be endorsed by the officer who receives the fees for the same, a receipt in the following form:-

Received Rs. paise as fee for this certified copy, dated

(Signed)

.....

12.

Fees for copies.

- The fees for certified copies of any record shall be prepaid in cash in accordance with the rates as provided in the Schedules A and B hereto, namely:-

A

For areas other than the City of Bombay

Serial No.

Category of records

Fees

1.

Every certified copy of a serial number or entry in the record of rights, register of mutations and from the registers, accounts and records other than maps maintained by a Talathi under sub-section (4) of Section 14 of the Code

Re.[2.00]

[MISC. 1095/CR-121/L-I, Part IV-B, 1996, Ex., dated 12.12.96.]

[1-A.

[UNF. 2867-R. (Spl.) P, 20.5.1972, M.G.G., Part IV-B, 8.6.1972, p. 113.]

Every certified copy of the whole of the combined Form V.F.VII-XII.]

Re.[2.00]

[MISC. 1095/CR-121/L-I, Part IV-B, 1996, Ex., dated 12.12.96.]

2.

Every certified copy of an entry in the register of property maintained by a Survey Officer under Section 128.

Re.[0.75]

[MISC. 1095/CR-121/L-I, Part IV-B, 1996, Ex., dated 12.12.96.]

3.

(i) Every certified copy of the tabular annewari statement of a village with annewari decision worked out therein.

Re.[2.00]

[MISC. 1095/CR-121/L-I, Part IV-B, 1996, Ex., dated 12.12.96.]

(ii) Every certified copy of the decision of the Collector or Tahsildar not embodied in the statement of annewari or of the opinion of the village committee as to the anna valuation.

Re.[0.75]

[MISC. 1095/CR-121/L-I, Part IV-B, 1996, Ex., dated 12.12.96.]

4.

Every certified extract from a register of alienation's established or recognized under the provisions of any law for the time being in force.

[Fifteen]

[No. PWR. 1082/CR-II-67, L-2, 7.5.1985, M.G.G. Part IV-B, p. 1618.]

paise for every rupee of the amount of alienated revenue subject to the minimum of Rs.[3]

[MISC. 1095/CR-121/L-I, Part IV-B, 1996, Ex., dated 12.12.96.]

. and

maximum of Rs.[23.50]

[MISC. 1095/CR-121/L-I, Part IV-B, 1996, Ex., dated 12.12.96.]

.

5.

Every certified copy of a map or plan of a survey number or of a sub-division of a survey number or of any (uncoloured) map or plan of any Immovable property referred to in clause (a) of Section 153 of the Code.

1. [50]

[No. PWR. 1082/CR-II-67, L-2, 7.5.1985, M.G.G. Part IV-B, p. 1618.]

for every survey number or sub-division of a survey number subject to the minimum of Rs.[3]

[MISC. 1095/CR-121/L-I, Part IV-B, 1996, Ex., dated 12.12.96.]

.

6.

Every certified copy of a map of a survey number or of a sub-division of a survey number or of any ordinary (uncoloured) map or plan of any immovable property prepared in accordance with the survey made under Section 79 of the Code.

Rs.[3]

[No. PWR. 1082/CR-II-67, L-2, 7.5.1985, M.G.G. Part IV-B, p. 1618.]

for every survey number or a sub-division of a survey number.

7.

Every certified copy of a map or plan of a non-agricultural survey number or a sub-division of such a survey number or of an extract of city survey map (prescribed)

under Section 128 of the Code.

(i) in the Bombay Suburban District.,

Rs.[7.50]

[No. PWR. 1082/CR-II-67, L-2, 7.5.1985, M.G.G. Part IV-B, p. 1618.]

for every survey number or a
sub-division of a survey number.

(ii) in areas other than the Bombay Sub urban
District.

Rs.[3]

[No. PWR. 1082/CR-II-67, L-2, 7.5.1985, M.G.G. Part IV-B, p. 1618.]

for every survey number or a
sub-division of a survey number.

8.

For showing the scaled off perimeter
measurements on any certified copy of the map of a survey number
or sub-division of a survey number prepared under items 5, 6,
and 7 -

(i) if applied for at the time of measurement
of the survey number or sub-division of a survey number.

Re.[0.75]

[No. PWR. 1082/CR-II-67, L-2, 7.5.1985, M.G.G. Part IV-B, p. 1618.]

paise.

(ii) if applied for at any time thereafter

Re.[1.50]

[No. PWR. 1082/CR-II-67, L-2, 7.5.1985, M.G.G. Part IV-B, p. 1618.]

9.

Every certified copy of a map or plan or of any
portion of a map or plan not falling under items 5, 6 and 7.

Such fee not exceeding Rs.[45]

[No. PWR. 1082/CR-II-67, L-2, 7.5.1985, M.G.G. Part IV-B, p. 1618.]

and not less

than Rs.[3]

[No. PWR. 1082/CR-II-67, L-2, 7.5.1985, M.G.G. Part IV-B, p. 1618.]

as the Officer who certifies the copy shall

determine:

Provided that no fee exceeding Rs.[15]

[No. PWR. 1082/CR-II-67, L-2, 7.5.1985, M.G.G. Part IV-B, p. 1618.]

shall

be charged by an officer subordinate to a Collector except with
the permission of the Collector or by a Survey Office
subordinate to a Superintendent of Land Records, except with the
permission of such Superintendent.

10.

For every certified copy of records not falling
under items 1 to 9 -

(i) for every sheet of paper, 30 x 21 C. Ms. In
dimensions, handwritten or typed with double spacing.

Rs.[3]

[No. PWR. 1082/CR-II-67, L-2, 7.5.1985, M.G.G. Part IV-B, p. 1618.]

for every sheet of paper or part
thereof.

(ii) if such record be in tabular form.

Twice the rate specified in clause (i) of this item.

11.

For every true copy of a certified copy

The same fee as for a certified copy.

12.

For every authenticated translation of orders, and the reasons therefor, and of exhibits in formal or summary enquiries under the Code-

(i) For the first 100 words or fraction of 100 words.

Rs.[3]

[No. PWR. 1082/CR-II-67, L-2, 7.5.1985, M.G.G. Part IV-B, p. 1618.]

(ii) For every subsequent 100 words or fraction of 100 words.

Re.[1.50]

[No. PWR. 1082/CR-II-67, L-2, 7.5.1985, M.G.G. Part IV-B, p. 1618.]

B

For the City of Bombay

Serial No.

Category of records

Fees

1

2

3

1.

Every certified copy of a map or plan other than revenue survey plan of an area -

(a) below 100 square metres

Rs.[15

[Amended by No. PWR-1082-CR-II-67-L-2, 7.5.1985, M.G.G., Part IV-B, p. 1618.]

(b) between 100 and 500 square metres

Rs. 18

(c) between 500 and 1,000 square metres

Rs. 21

(d) between 1000 and 3,000 square metres

Rs. 25-50

(e) between 3000 and 10,000 square metres

Rs. 37.50

(f) 10,000 square metres and above

Rs. 52.50]

2.

Every certified copy of a revenue survey map or plan of an area

(a) below 100 square metres

Rs.[16.50

[Amended by No. PWR-1082-CR-II-67-L-2, 7.5.1985, M.G.G., Part IV-B, p. 1618.]

(b) between 100 and 500 square metres

Rs. 19.50

(c) between 500 and 1,000 square metres

Rs. 22.50

(d) between 1000 and 3,000 square metres

Rs. 27

(e) between 3000 and 10,000 square metres

Rs. 45

(f) 10,000 square metres and above

Rs. 60]

3.

Every certified copy of an extract from a Survey Register,
Rent Roll, Reference Book and Transfer Schedule.

Rs.[7.50]

[Amended by No. PWR-1082-CR-II-67-L-2, 7.5.1985, M.G.G., Part IV-B, p. 1618.]

for each entry.

4.

Certified copy of records not falling under items 1, 2, and

3-

For every sheet of paper, 30 x 21 C.Ms. in dimensions or a
portion thereof hand written or typed with double spacing.

Rs.[6]

[Amended by No. PWR-1082-CR-II-67-L-2, 7.5.1985, M.G.G., Part IV-B, p. 1618.]

13.

Cost of paper and printed form.

- In addition to the copying fees chargeable under Rule 10, the applicant shall pay charges for paper, printed form, drawing paper, tracing paper or cloth used for purposes of copying at the rate from time to time fixed by the State Government in that behalf.

14.

Stamp duty or Court-fee payable in addition.

- Nothing in these rules shall affect the provisions of the Bombay Stamp Act, 1958 (Bombay LX of 1958), or the Bombay Court-fees Act, 1956 (Bombay XXXVI of 1959) and accordingly the stamp duty or Court-fee with which an application, copy or extract made or furnished under those rules may be chargeable is in addition to the fees prescribed by or under these rules.

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